

HOUSE BILL 1497

By Cepicky

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 5; Title 6 and Title 7, relative to elections.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 6-20-102, is amended by deleting the section.

SECTION 2. Tennessee Code Annotated, Section 6-31-102, is amended by deleting the section.

SECTION 3. Tennessee Code Annotated, Section 6-54-138, is amended by deleting the section.

SECTION 4. Tennessee Code Annotated, Title 6, Chapter 53, is amended by adding the following as a new section:

(a) Notwithstanding any private act of a municipality to the contrary, the legislative body of each municipality shall change the date of municipal elections to coincide with the August primary or November general election.

(b) The ordinance changing the election date must provide for the extension of the terms of members of the legislative body of the municipality necessary to meet the election date, but no term may be extended for more than two (2) years beyond its regular expiration date. When the dates of a municipality's elections are changed pursuant to subsection (a), the presiding officer of the legislative body shall file a certified copy of the ordinance with the state coordinator of elections.

(c) This section does not remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which an elected official was elected.

(d)

(1) Except as provided in subdivision (d)(2), the first election of the members of a legislative body in a municipality that is chartered after the effective date of this act must be held with an upcoming regular primary or general election being held in the jurisdiction. If the election at which a charter under this title has been adopted occurs on or before ten (10) days before the regular qualifying deadline, then the regular qualifying deadline applies. If the election occurs less than ten (10) days before the regular qualifying deadline, independent candidates and candidates nominated by any political party must qualify no later than twelve o'clock (12:00) noon, prevailing time, fifty-five (55) days before the election. If the qualifying deadline is the fifty-fifth day before the election, candidates must withdraw no later than twelve o'clock (12:00) noon, prevailing time, fifty-two (52) days before the election.

(2) If an election to incorporate is held on the regular November election and the majority of the votes cast are in favor, then the first election of the members of the legislative body in the newly incorporated municipality must be held as a special election under chapter 14 of this title.

(3) After an initial election is held pursuant to subdivision (d)(1) or (d)(2), the legislative body of the municipality shall fix the date of all subsequent elections to coincide with the regular August or regular November general election.

(e)

(1) After an initial election is held pursuant to subsection (d), elections for members of the legislative body are partisan. If a statewide political party decides to nominate members of the legislative body by primary election, it must

direct the county election commission to hold the primary in the same manner as described in § 2-13-203(e).

(2) Primary elections in which candidates nominated for members of the legislative body are to appear on the regular August election ballot are held on the first Tuesday in May before the August election. In the years in which an election is held for president of the United States, a political party primary for offices to be elected in the regular August election is held on the same day as the presidential preference primary. In such event, the qualifying deadline for independent and primary candidates is twelve o'clock (12:00) noon, prevailing time, on the date established in § 2-5-101(a)(3).

(3) Primary elections in which candidates nominated for members of the legislative body are to appear on the regular November election ballot are held concurrently with the regular August election. The qualifying deadline for independent and primary candidates is twelve o'clock (12:00) noon, prevailing time, on the date established in § 2-5-101(a)(2).

SECTION 5. Tennessee Code Annotated, Section 2-13-208, is amended by deleting the section and substituting instead:

(a) Notwithstanding a charter provision to the contrary, municipal elections are partisan. Political parties may nominate candidates for municipal office by using the primary election provisions of this title or as otherwise authorized by the rules of the party.

(b) Elections in a county having a metropolitan form of government are municipal elections for purposes of this section.

SECTION 6. Tennessee Code Annotated, Section 6-31-104, is amended by deleting the section.

SECTION 7. Tennessee Code Annotated, Section 6-1-202(a), is amended by deleting the language "not less than forty-five (45) days nor more than sixty (60) days after the petition is certified. The date of the election shall be set in accordance with § 2-3-204." and substituting instead "at the next election, as defined in § 2-1-104."

SECTION 8. Tennessee Code Annotated, Section 6-1-202(b), is amended by deleting the language "thirty (30) days" and substituting instead "ninety (90) days".

SECTION 9. Tennessee Code Annotated, Section 6-1-204(b), is amended by deleting the language "in accordance with § 2-8-105(3) within forty-eight (48) hours after the election." and substituting instead "in accordance with title 2, chapter 8, part 1."

SECTION 10. Tennessee Code Annotated, Section 6-1-207(a), is amended by deleting the subsection and substituting instead:

(a) The county election commission shall call an election pursuant to SECTION 4(d), following the election for adoption of this charter, at which time municipal officials are chosen to take office immediately following the election.

SECTION 11. Tennessee Code Annotated, Section 6-1-304, is amended by deleting the language "not more than sixty-two (62) days" in subsection (a) and substituting instead "pursuant to SECTION 4(d)"; and is further amended by deleting subsection (c).

SECTION 12. Tennessee Code Annotated, Section 6-18-104(b), is amended by deleting the language "thirty (30) days" and substituting instead "ninety (90) days".

SECTION 13. Tennessee Code Annotated, Section 6-18-105(c), is amended by deleting the language "within forty-eight (48) hours after it completes its duties under § 2-8-105(3)" and substituting instead "in accordance with title 2, chapter 8, part 1".

SECTION 14. Tennessee Code Annotated, Section 6-18-111, is amended by deleting the language "not less than forty (40) days nor more than fifty (50) days" in subsection (a) and

substituting instead "pursuant to SECTION 4(d)"; and is further amended by deleting subsection (b).

SECTION 15. Tennessee Code Annotated, Section 6-20-201(a)(3)(A), is amended by deleting the language ", as the board of commissioners directs the county election commission to hold under § 6-20-102".

SECTION 16. This act takes effect upon becoming a law, the public welfare requiring it.